

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500617	LOPEZ VS LOPEZ	MOTION APPLICATION FOR APPOINTMENT OF GUARDIAN AD LITEM

Tentative Ruling: Deny.

There is insufficient evidence presented that there is a need for a Guardian ad litem at this time. There is no capacity declaration signed and filed under penalty of perjury by an expert witness. Nor is a diagnosis of dementia sufficient in itself to establish incapacity. (*In re Marriage of Greenway* (2013) 217 Cal.App.4th 628.) Legally, a medical declaration is not required nor determinative. Medical testimony can be very helpful, but only if it provides evidence to assist the court in making the findings required to determine incapacity. Lay testimony can also be sufficient, if it meets the standards for appointing a GAL (which is outlined in C.C.P. §372(a)(2) and *In re Christina B.* (1993) 19 Cal.App.4th 1441). Here those standards have not been met.

The issue of conflict of interest must be determined by evidence presented to the Court. Herein, there is insufficient evidence for the Court to make a determination one way or the other. At the proper time the parties may wish to present evidence in the form of declarations under penalty of perjury or request an evidentiary hearing for the Court to make this determination.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500617	LOPEZ VS LOPEZ	MOTION TO BE RELIEVED AS COUNSEL FOR ALBERT LOPEZ

Tentative Ruling: Grant. The order shall not be effective until counsel has filed a proof of service indicating service on the client, including all future dates for the case.

An attorney's motion to be relieved as counsel is governed by CRC 3.1362. The motion must be directed to the client, and must be made on the mandatory Judicial Council Form Civil MC-051. No memorandum of points and authorities is required. The motion must be supported by a declaration on Judicial Council Form Civil MC-052. The declaration must state in general terms (without compromising the confidentiality of the attorney-client relationship) why a court order is required, as opposed to a substitution by mutual consent. Where the ground for withdrawal is a "conflict of interest" with the client, the attorney must describe the general nature of the conflict as fully as possible, within the confines of the attorney-client privilege (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134). As a practical matter, attorneys moving to withdraw on the grounds of a conflict of interest or for other privileged reasons frequently offer to provide additional details *in camera*, if the Court so desires.

The declaration must also comply with CRC 3.1362(d) if the moving papers are served on the client by mail. The declaration must state facts showing that the service address is the current residence or business address of the client, or that the service address is the last known residence or business address of the client, and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before filing the motion to be relieved as counsel. As used in the Rule, “current” means that the address was confirmed within 30 days before the filing of the motion. Merely demonstrating that the notice was sent to the client’s last known address and was not returned is not, by itself, sufficient to demonstrate the address is current (CRC 3.1362(d)). If service is by mail, CCP §1011(b) applies.

The Motion, Declaration, and Proposed Order must be served on the client and all parties who have appeared in the case (CRC §3.1362(d)). The Proposed Order Granting Attorney’s Motion to Be Relieved as Counsel must be prepared on Judicial Council Form Civil MC-053, and must be lodged with the Court with the moving papers (CRC 3.1362(e)). The Order must specify all hearing dates scheduled in the action, including the date of trial (if known). After the order is signed, a copy of the signed order must be served on the client and all parties that have appeared in the action. The Court will delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the Court.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504830	VINCENT VS UBA	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling: Sustain. No timely opposition. 30 days leave to amend.

The SAC presented by Plaintiff is uncertain on its face, presenting insufficient statements to constitute causes of action to which the defendant may provide a defense. The particularity required in pleading facts depends on the extent to which the defendant, in fairness, needs detailed information that the Plaintiff can conveniently provide. *Doheny park Terrace Homeowners Ass’n, Inc. v. Truck Insurance Exchange* (2005) 132 Cal. App. 4th 1076.

Further, in the second alleged cause of action, plaintiff has failed to properly allege a cause of action for injunctive relief. An injunction is not a cause of action but is solely a remedy; a cause of action must exist before a judge may grant a request for injunctive relief *Venice Coalition to Preserve Unique Community Character v. City of Los Angeles* (2019) 31 Cal. App. 5th 42, 54 and *Ivanoff v. Bank of America, N.A* (2017) 9 Cal. App. 5th 719, 734.